

THOMAS, J., concurring

§ 533, it provides that “[t]he Attorney General may appoint *officials* . . . to detect and prosecute crimes against the United States.” (Emphasis added.) It is unclear whether an “official” is equivalent to an “officer” as used by the Constitution. See *Lucia*, 585 U. S., at 254–255 (opinion of THOMAS, J.) (considering the meaning of “officer”). Regardless, this provision would be a curious place for Congress to hide the creation of an office for a Special Counsel. It is placed in a chapter concerning the Federal Bureau of Investigation (§§ 531–540d), not the separate chapters concerning U. S. Attorneys (§§ 541–550) or the now-lapsed Independent Counsel (§§ 591–599).⁴

To be sure, the Court gave passing reference to the cited statutes as supporting the appointment of the Special Prosecutor in *United States v. Nixon*, 418 U. S. 683, 694 (1974), but it provided no analysis of those provisions’ text. Perhaps there is an answer for why these statutes create an office for the Special Counsel. But, before this consequential prosecution proceeds, we should at least provide a fulsome explanation of why that is so.

Even if the Special Counsel has a valid office, questions remain as to whether the Attorney General filled that office in compliance with the Appointments Clause. For example, it must be determined whether the Special Counsel is a principal or inferior officer. If the former, his appointment is invalid because the Special Counsel was not nominated by the President and confirmed by the Senate, as principal officers must be. Art. II, § 2, cl. 2. Even if he is an inferior officer, the Attorney General could appoint him without Presidential nomination and senatorial confirmation only if “Congress . . . by law vest[ed] the Appointment” in the Attorney General as a “Hea[d] of Departmen[t].” *Ibid.* So, the Special Counsel’s appointment is invalid unless a statute cre-

⁴ Regulations remain on the books that contemplate an “outside” Special Counsel, 28 CFR § 600.1 (2023), but I doubt a regulation can create a federal office without underlying statutory authority to do so.